

FREE RESOURCE

SB 179 Compliance Quick Reference

The Texas school counselor 80/20 time rule — what counts, what doesn't, and how to track it

80%

DIRECT — COUNSELING PROGRAM

20%

INDIRECT — MAXIMUM

CLEAR PATH EDUCATION GROUP

THE RULE EXPLAINED

Senate Bill 179 (87th Texas Legislature, 2021) requires Texas school counselors to spend at least **80% of total work time** on duties that are components of the district's **comprehensive school counseling program** (TEC §33.005). No more than **20%** may go to non-program and administrative duties.

A district that assigns a counselor below 80% must adopt a board policy explaining why, listing the non-program duties, and stating the percentage of time set for program duties.

WEEKLY TIME TARGETS (40-HOUR WEEK)

- Direct services: **32 hours minimum** (80%)
- Indirect services: **8 hours maximum** (20%)
- Per day: ~6.4 hours direct, ~1.6 hours indirect
- Track in 15-minute increments for accuracy

DIRECT — COUNTS TOWARD THE 80%

Activity	Component	Example
Classroom guidance lessons	Guidance	Teaching conflict resolution to 3rd grade
Small group counseling	Guidance	Friendship skills group (6 sessions)
Character education delivery	Guidance	Morning assembly on kindness
Individual counseling sessions	Planning	Meeting with a student about grades
Crisis intervention	Responsive	Suicide risk assessment; student disclosure
Academic/career advising	Planning	Middle school transition planning
Test interpretation with students	Planning	Reviewing STAAR results with a student
Small group crisis response	Responsive	Grief group after a loss
Peer mediation facilitation	Responsive	Resolving friendship conflict
Parent consultation about a student	Responsive	Parent conference about behavior
Referral coordination	Responsive	Connecting a family to community resources

WHAT'S INDIRECT (20% MAX) + WHAT DOESN'T COUNT

Know the difference — it's the whole audit

● INDIRECT — 20% MAXIMUM

- Program management & coordination
- Committee meetings (504, MTSS, RTI)
- Data entry & reporting
- Professional development attendance
- Consultation with admin about the program
- Curriculum development
- Testing coordination (STAAR, state assessments)

⚠ **Scheduling duties — should be minimized per TEC §33.006**

⚠ **Hallway/cafeteria duty — NOT counseling — should be 0%**

⚠ **Clerical tasks assigned by admin — NOT counseling**

✗ DOES NOT COUNT AT ALL

✗ **Substitute teaching**

✗ **Bus duty**

✗ **Lunch duty**

✗ **Standardized test administration**

✗ **Disciplinary proceedings (unless counseling-related)**

✗ **Clerical/administrative tasks unrelated to the counseling program**

⚠ "If it could be done by someone without a counseling degree, it's not counseling."

WEEKLY TIME TRACKING — SB 179

Week of _____ · Counselor _____ · Campus _____

Direct Indirect Non-Counseling Off-Duty

Shade each block · Total the week · Direct ÷ Total ≥ 80%?

Time Block	Monday	Tuesday	Wednesday	Thursday	Friday
7:30–8:00					
8:00–8:30					
8:30–9:00					
9:00–9:30					
9:30–10:00					
10:00–10:30					
10:30–11:00					
11:00–11:30					
11:30–12:00					
12:00–12:30					
12:30–1:00					
1:00–1:30					
1:30–2:00					
2:00–2:30					
2:30–3:00					
3:00–3:30					
3:30–4:00					
4:00–4:30					